THE GAZETTE OF INDIA : EXTRAORDINARY

THE BHARATIYA SAKSHYA ADHINIYAM, 2023

ACT NO. 47 OF 2023 [25th December, 2023]

Section 1. Short title, application and commencement.—

(1) This Act may be called the Bharatiya Sakshya Adhiniyam, 2023. (2) It applies to all judicial proceedings in or before any Court, including Courts-martial, but not to affidavits presented to any Court or officer, nor to proceedings before an arbitrator. (3) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

Section 2. Definitions.—

(1) In this Adhiniyam, unless the context otherwise requires,— (a) "court" includes all Judges and Magistrates, and all persons, except arbitrators, legally authorised to take evidence; (b) "document" means any matter expressed or described or otherwise recorded upon any substance by means of letters, figures or marks or any other means or by more than one of those means, intended to be used, or which may be used, for the purpose of recording that matter and includes electronic and digital records; (c) "evidence" means and includes all statements which the Court permits or requires to be made before it by witnesses; and all documents including electronic or digital records produced for the inspection of the Court.

Section 61. Admissibility of electronic or digital record.—

Nothing in this Adhiniyam shall apply to deny the admissibility, of an electronic or digital record in evidence on the ground that it is an electronic or digital record and such record shall have the same legal effect, validity and enforceability as any other document.

Section 62. Special provisions as to evidence relating to electronic record.—

The contents of electronic records may be proved in accordance with the provisions of section 63.

Section 63. Admissibility of electronic records.—

(1) Notwithstanding anything contained in this Adhiniyam, any information contained in an electronic record which is printed on paper, stored, recorded or copied in optical or magnetic media or each form of computer memory produced by a computer shall be deemed to be also a document, if the conditions mentioned in this section are satisfied in relation to the information and computer in question and shall be admissible in any proceedings, without further proof or production of the original, as evidence of any contents of the original or of any fact stated therein of which direct evidence would be admissible. (2) The conditions referred to in sub-section (1) in respect of an electronic record shall be the following, namely:— (a) the computer output containing the information was

produced by the computer during the period over which the computer was used regularly to store or process information for the purposes of any activities regularly carried on over that period by the person having lawful control over the use of the computer; (b) during the said period, information of the kind contained in the electronic record or of the kind from which the information so contained is derived was regularly fed into the computer in the ordinary course of the said activities; (c) throughout the material part of the said period, the computer was operating properly or, if not, that in respect of any period during which it was not operating properly or was out of operation during that part of the period, was not such as to affect the electronic record or the accuracy of its contents; and (d) the information contained in the electronic record reproduces or is derived from such information fed into the computer in the ordinary course of the said activities. (4) In any proceedings where it is desired to give a statement in evidence by virtue of this section, a certificate doing any of the following things, that is to say,— (a) identifying the electronic record containing the statement and describing the manner in which it was produced; (b) giving such particulars of any device involved in the production of that electronic record as may be appropriate for the purpose of showing that the electronic record was produced by a computer... shall be evidence of any matter stated in the certificate.